
FOLLOW THE STATUTE

TO	Oregon Parks and Recreation Department; Oregon State Police Central Records; Oregon Department of Justice, Public Records Orders; Office of the Governor; Governor Tina Kotek; Oregon Parks and Recreation Commission
FROM	Robert Samuel White, P.O. Box 334, Reedsport, Oregon 97467
DATE	September 26, 2026
RE	ORS 192 in this matter
TESTIMONY	v1.11
AI DISCLOSURE	How this record is made.

The State of Oregon does not follow its own public records law. I am documenting that fact, in public, from your own records. This letter states what each of you did.

OREGON PARKS AND RECREATION

You told me a response was provided when you provided nothing. On November 20, 2025 you wrote: “Below is an image of the response we provided to you on August 29, 2025.”¹ You sent nothing to the mailing address on my request and nothing to the email address on my request.² You answered into a portal you never gave me access to, and I still cannot read the response you say you provided.

You blamed me for your own silence. The same letter states: “OPRD has not received any response from you regarding whether you would like to refine the request.”¹ You put your question where I could not see it, then put in writing that I was the one who had not answered.

You added my email address to your portal three months after the day you claim you answered me.³ The first message that system ever sent me came on November 25, 2025, and it was to tell me my request was closed.⁴

You price records so they cannot be had. Your answer to my first request, the one you posted where I could not read it, carried estimates in the tens of thousands of dollars.¹ On April 10, 2026 you priced the volunteer program categories of my April 2 request at forty to eighty hours each.⁵ On September 18, 2026 you priced every communication concerning me sent or received by your Director at six hours, and the notes and calendar entries of two people at forty hours, \$1,728 in all, with \$80 more to see the version histories of your own “Timeline of Events.”⁶ You have never shown me the basis for any of these numbers.⁸

You do not answer the waiver the statute provides. My September 5 request asked for a fee waiver under ORS 192.324(5) and stated the grounds.⁷ Neither estimate grants it, denies it, or mentions it.⁸ The decision belongs to your custodian, the Director, and the records requested are her own communications. The person who holds the power to waive the fee is the person the records are about, and she is choosing not to exercise it.

OREGON STATE POLICE

You told me records did not exist while you held them. On April 3, 2026 you wrote that a search “identified no records responsive to your request.”⁹ Your own production of September 3, 2026 contains the records.¹⁰

You wrote an exemption sentence that names no record, and the state then used it against me.¹⁵ Your April 13, 2026 letter lists the records you located. That list has one entry: “CAD, \$12.50.” Elsewhere in the same letter, attached to nothing, you wrote: “The body cam is exempt from disclosure. ORS 192.345(40) exempts audio or video recordings resulting from a law enforcement officer’s operation of a video camera worn upon the officer’s person.”¹¹ That sentence does not say a recording of the March 24 contact exists, how many, or which officer wore the camera. Then the Department of Justice denied my petition by calling that sentence your citation of the exemption.¹²

You withheld records your own production names. On September 3, 2026 you produced sixteen files and kept four that your files identify as attached: the body-worn camera video of the March 24 contact, “OSP Hasty Form Robert White.pdf,” “WHITE,ROBERT SAMUEL DMV.pdf,” and “ReportRobertWhite.pdf.”¹³ I told you the same day the production was not sufficient, from your own documents.¹⁴

Your time to answer ran out on September 25, 2026.

OREGON DEPARTMENT OF JUSTICE

You denied my petition on a claim Oregon State Police never made to me. Your July 29, 2026 order states the agency responded “citing the exemption for body camera video provided by ORS 192.345(40).”¹² No one ever cited that exemption to me for any named record.¹¹ When I asked where the claim came from, your attorney answered the next morning with a screenshot of page 20 of my own exhibits: the fee letter, the sentence that names no record.¹⁵ You invented a response the agency never gave, decided my petition on it, and pointed at my own filing as the source.

You dismissed my second petition on a word that is not in the statute. Your September 24, 2026 order states:¹⁶

Because your petition seeks records in the custody of the Governor, an elected official, we lack jurisdiction to consider your appeal and must respectfully dismiss your petition.

ORS 192.427 does not say custody. It bars a petition where a record is withheld and an elected official claims the right to withhold it. Your own Public Records and Meetings Manual says so at page 37: the bar applies “regardless of whether the record in question is in the custody of the elected official or in the custody of any other public body, so long as the elected official claims the right to withhold the record.”¹⁷ No record was withheld: the Office of the Governor priced the records and sent payment instructions.¹⁸ Governor Kotek claimed nothing. You wrote a jurisdiction that does not exist to avoid reviewing a fee.

OFFICE OF THE GOVERNOR

You declared me unable to publish records while I publish yours. Your September 22, 2026 waiver denial weighs five factors and finds all five against me.¹⁹ It calls my interest personal rather than public. It states I have “not demonstrated the ability to disseminate the public records but merely stated that he can post it on a website.” That website is a public archive where every record in this matter is published in full, as received, the day it arrives. Your attorney wrote the denial from a template. ORS 192.324(5) permits reducing a fee as well as waiving it, and reduction appears nowhere in his analysis. He considered half the statute and called it a decision.

WHAT YOU ARE DOING

You do not ask questions. You do not answer them. The statute obligates you to serve the public, and you do not try. You do this to everyone who asks. Most people cannot prove it. I can, and I have: every document named in this letter is published, with its date, at <https://oprdrvoluteerabuse.org/records-requests>, and everything you send me next will be published there too.

FOLLOW THE STATUTE

Oregon Parks and Recreation: decide the fee waiver of September 5 in writing, at the level of your custodian, as ORS 192.324(5) requires. Answer my requests at the addresses they carry.

Oregon State Police: produce the four records your own production names, or assert an exemption that names each of them, as ORS 192.329(2)(b) requires. Answer my letter of September 3.

Oregon Department of Justice: decide a petition on the grounds it raises, from the record. ORS 192.427 gives you jurisdiction over the fee denial my petition put in front of you. Exercise it.

Office of the Governor: waive or reduce the fee, as ORS 192.324(5) provides, and produce the records.

Follow the statute.

Respectfully,

Robert Samuel White

Sources

1. [Fw: Notice of Violation, November 20, 2025](#). The screenshot of the August 29 posting, the statement that it was provided, and the statement that no response had been received.
2. [Public Records Request - Volunteer Program Operations and Management, August 22, 2025](#). The request, carrying the mailing address and the email address.
3. [An audit from CivicPlus, November 25, 2025](#). Written the same morning the portal first made contact.
4. [Request #25-42 has been closed, November 25, 2025](#). The first message ever received from the NextRequest system.
5. [Records Request response- 4/2/2026, April 14, 2026](#). The email carrying the cost estimate of April 10, 2026.
6. [The September 5 request, priced at \\$1,728, September 18, 2026](#).
7. [Public records request: the Director and the Deputy Director, September 5, 2026](#). The request, with the fee waiver and its grounds.
8. [The estimates of September 18, 2026](#). The response disputing both estimates and stating that the waiver request of September 5 remained undecided.
9. [No-records response, April 3, 2026](#).
10. [The records are produced, September 3, 2026](#). The full PR27478 production of the Oregon State Police.
11. [A record exists; \\$12.50 by check or money order, April 13, 2026](#). The fee letter, and the body camera sentence.
12. [Attorney General order, DOJ File No. 257001-GA0140-26, July 29, 2026](#).
13. [The production is not sufficient, September 3, 2026](#). The ten categories stated as outstanding, each drawn from the production itself.
14. [A man who keeps records, September 24, 2026](#).
15. [Source of the exemption reference, July 30, 2026](#). "The reference to the body camera exemption comes from the exhibits attached to your petition. Specifically, page 20/89."
16. [The petition is dismissed for lack of jurisdiction, September 24, 2026](#). DOJ File No. 121010-GA0187-26.
17. Attorney General's Public Records and Meetings Manual, 2024 edition, page 37, under the heading "Elected Officials".
18. [The payment instructions arrive, September 24, 2026](#).
19. [The fee waiver is denied: \\$572.50, September 22, 2026](#).